

Ref:

Date:

**Mr. Raval**

### **APPOINTMENT LETTER**

Dear **Mr. ,**

With reference to your offer letter with ref no. GTPL/HO/HR/OL/26-27/TA/1128, we are pleased to issue your appointment letter in our organization **Gitakshmi Enterprises Private Limited** having its registered office at 304-306 & 701, Kaivanna Complex, C.G Road, Panchavati Society, Ambawadi, Ahmedabad, Gujarat- 380006.

During your employment you will be governed under the Terms and Conditions as listed below:

1. **Position:** You are currently designated as **MERN Stack** department.
2. **Date of Joining:** Your employment has commenced from .
3. **Compensation:** Your current annual cost to the Company (CTC) is **Rs./- (Rupees )**. Refer Annexure 1 for CTC breakup.
  - 3.1. The management reserves the right to bifurcate the salary among allowances & reimbursement based on internal policy, or any change in Govt. policies at the sole discretion of the management.
  - 3.2. You will not be liable to claim or demand any other privileges, allowances, or compensation except otherwise made applicable as per HR policy.
  - 3.3. Compensation is a matter of high confidentiality and employees must not share any information regarding their compensation with their peers or colleagues; breach of confidentiality would warrant for an appropriate disciplinary action.
4. **Posting & Transfer:** Your initial place of posting will be at 304-306 & 701, Kaivanna Complex, C.G Road, Panchavati Society, Ambawadi, Ahmedabad, Gujarat- 380006.. However, your services are liable to be transferred as per business requirement and at the sole discretion of Management, in such other capacity as the company may determine, to any department / section, location, associate, sister concern or subsidiary, at any place in India or abroad, whether existing or planned. In such a case, you will be governed by the terms and conditions of the service applicable at the transferred location. In case of refusal to accept the transfer order, your services are liable to be terminated with due notice as per applicability of employment.
5. **Salary revision:** Your salary will be reviewed according to the company's annual appraisal policy, or at such other time as the Management may decide. Salary revisions are discretionary and will be subject to, and on the basis of, effective performance and results.
6. **Probation:** You shall be on probation for a period of **Six months** from the date of joining, thereafter your performance will be reviewed and if found satisfactory, your employment will be confirmed in writing through a probation confirmation letter. Company reserves the right to extend the probation period for a suitable time at its discretion upon dissatisfactory performance of an employee. Probation period is deemed to be extended or employee will remain on probation unless confirmed in writing. During the initial or extended period of probation, your services are liable to be terminated with **Thirty days'** notice or salary in lieu thereof.

Employee Signature\_\_\_\_\_

Page **1** of **8**

6.1 During the probation period, the notice period will be **Thirty days** for either party without adjusting any pending leaves or holidays as the case may be or alternatively payment of like period of salary in lieu of such notice. However, if the company does not accept the payment instead of notice period for any reason, whatsoever and directs you to continue the services, you shall continue until you are relieved.

6.2 In case your overall performance is not found satisfactory, your probation may be extended upto a maximum period of **Six months**. Till such time you are not confirmed in writing and you shall continue to be on extended probation.

**7. Notice of Termination:** On your services being confirmed in writing, your services may be terminated by the company by giving “**Three Months**” notice or salary in lieu thereof. In the unfortunate situation, that you wish to resign from the services of the company, you may do so by giving “**Three Months**” notice or payment of salary in lieu of such notice. However, the company reserves the right to continue your service for the entire notice period and not accept the offer of salary in lieu thereof. The period of notice is to be calculated from the date of formal resignation being submitted in writing/ email.

**8. Full time employment:** Your position is a full-time employment with the Company and you shall devote your time and efforts exclusively to the business and interests of the company. You shall not take up any other work for remuneration (part time or otherwise) or work in an advisory capacity, or be interested directly or indirectly (except as shareholder / debenture holder), in any other trade or business during your employment with the company, without permission in writing of the Group CEO of the Company. Any contravention of this condition will entail termination of your services from the company. Membership of any local, public or professional institutions if obtained should be notified to the Human Resource Department.

**9. Career Progression:** Your career progression will depend upon company's internal grade structure, based upon your performance ranking & tenure of service in the organization, for your professional growth you may be required to attend various training initiatives or such training program organized and conducted by internal or external trainers wherein you should ensure your presence and complete participation if your being nominated to attend such program by the company.

**10. TA & DA:** For travelling on out station duties from the place of your employment your expenses shall be reimbursable by the TA & DA policy of the company. You will not be liable to claim any other expenses unless pre- approved & notified in written by human resource department.

**11. Punctuality:** You will strictly observe punctuality and abide by the company's time office policy, disciplinary action for tardiness can be initiated. However, in the exceptional circumstances expressly explained by you, the human resource department may permit grace period through a written notification.

**12. Medical Fitness:** This appointment and its continuation are subject to you being found and remain medically (physically and mentally) fit. You may at any time be required to undergo a medical examination at the sole discretion of the management, by the medical practitioner so authorized by the company.

**13. Notice & Memo:** Any notice, memo or other communication shall be deemed to be received on following events-

13.1. Upon delivery, when delivered by hand. (Refusal to receive any communication sort to be delivered personally will amount to insubordination).

13.2. Upon delivery, if sent by a courier or certified registered mail, post with a reliable system for tracking delivery to the address mentioned in employee personal record.

13.3. Upon delivery, if sent to the employee personal email address.

13.4. It will be your duty to intimate in writing to the human resource department whenever there is any change of your permanent address, correspondence address, personal E mail ID, personal contact number & emergency contact number.

Employee Signature\_\_\_\_\_

Page **2** of **8**

**14. Communication:** During your employment, you will be liable to communicate with and within the company for which IT department will provide you an official Email ID or company series mobile connection based on your work responsibilities. Any use of personal email ID will be deemed unlawful and shall result in disciplinary action.

**15. Confidentiality & Prohibition from un-authorized use of company's information:** You will always keep confidentiality of any information of the Company during and after your employment with the Company, which may be known/ disclosed to you, or which may come to your knowledge during your employment. You should not publish any company's information on your social media or any public account unless authorized to do so, you should not transfer or store any company's information such as MIS, Data, Pictures, Internal IOC's, Memo's, Formats Policies etc. on your personal storage devices, email account or any such location not authorized by the company.

Any disclosure of confidential information to a third party shall warrant you for appropriate disciplinary action and/or make you liable for prosecution, injunction, payment of damages and other legal actions by the Company against you, of any nature whatsoever.

**16. Prohibition of Insider Trading:** You will not deal in the securities of the Company (when applicable) when the trading window is closed. The period during which the trading window is closed shall be termed as prohibited period. You will obtain pre-clearance for trading from Compliance Officer of the Company when the trading window is open, if the value of the proposed trades, whether in one transaction or a series of transactions over any calendar quarter, aggregates to a traded value in excess of 10 Lakh (Rupees Ten Lakh Only); You will not execute contra trade within a period of six months from the date of last trade; and You will not trade when in possession of unpublished price sensitive information. Any trading in violation of above restrictions will be reported to the Stock Exchanges.

**17. Return of Company Asset:** Company's asset which may be given to you for your official use during your employment should be well maintained and returned in an event of transfer, policy change & exit failing to which, the cost of the same will be recovered.

**18. Responsibilities & Duties:** Your work in the organization will be subject to the rules and regulations of the organization as laid down in relation to conduct, discipline and other matters. You will always be affirmative to the responsibilities and duties assigned to you. You must effectively perform to ensure results.

**19. Background Verification & Past Records:** Your employment in the company is subject to successful pre- or post- employment background verification, you hereby give consent to the company to undertake background verification by self or any such agencies authorized by the company. If any declaration given, or information furnished by you, to the company proves to be false, or if you are found to have willfully suppressed any material information, in such cases, you will be liable for any disciplinary action including termination from services without any notice.

**20. Prevention of Sexual Harassment (POSH):** Gitakshmi Enterprises Private Limited is committed for the Prevention of Sexual Harassment (PoSH) with our employees, sub-contractors, and vendors. We believe in creating healthy and conducive working environment that enables employees to work without any fear of any sexual harassment and undesired gestures.

We ensure strict adherence to the company's PoSH Policy, and employees are liable for strict disciplinary action including termination of the services without any notice period if found guilty of breaching the POSH policy.

**21. No Discrimination at Workplace:** Gitakshmi Enterprises Private Limited is committed to prevent any form of discrimination and prejudice on account of gender, domicile, age, cast, race, ethnicity of our employees, contractors and vendors. We believe in the culture of diversity & inclusion and encourage equal rights of participation to differently abled employees. We ensure strict adherence of our NO Discrimination at workplace policy and any offender to the policy are dealt with the strict disciplinary action.

Employee Signature\_\_\_\_\_

Page **3** of **8**

**22. Business Ethics & No borrowing, accepting, or offering Gifts:** Gitakshmi Enterprises Private Limited is committed to conduct all its business operations within the purview of ethical and moral code. We believe our employees will carry out their responsibilities while maintaining the ethical conduct and will not take part in any malicious activities, including bribery & corruption also we ensure that no employee will borrow or accept or give any money, gift, reward, or compensation for your personal gains from or otherwise place yourself under pecuniary obligation to any person with whom you may be having official dealings.

**23. IT Policy:** You shall be governed by the company's IT policy. The Company have the right to access or examine your email, computer, laptop, or mobile handset if issued by the company or any such tools provided by the company to you to maintain the compliance with the **Gitakshmi Enterprises Private Limited** IT policy.

**24. Resignation & Notice Period:** In an event of resignation your notice period will be **Three months** (working); The notice period can be further increased or decreased as per your employment grade and tenure of service in the company or revision in HR policy. In such revision in notice period shall be communicated through an official circular deemed to be accepted by the employee.

24.1. During your notice period you shall not take any leave except any sick leave with pre-written intimation to your reporting authority.

24.2. For such sick leaves, you will be required to extend the notice period equaling to the days of leave availed.

24.3. If in case, you are unable to serve the required notice period company will generate recovery as per actual shortfall in notice period from the full & final settlement at the rate of last drawn gross monthly salary which is to be cleared by the employee within **fifteen days** from the last date of working.

24.4. The company may in its discretion, can relieve the employee who has resigned from the employment in Company before the completion of notice period upon mutual agreement without any notice due thereof.

24.5. In an event of unapproved exit prior, the completion of notice period company reserves the right to withheld service certificate and reliving letter.

**25. Termination of the Employment:** The Company can anytime initiate the process of termination on the following events if an employee is found guilty of-

25.1. Breach in code of conduct of the organization.

25.2. Breach in Prevention of Sexual Harassment at work place policy.

25.3. Theft, Forgery, Corporate espionage, Perjury or any act causing the direct or indirect loss to the organization.

25.4. Found guilty in any criminal offence.

25.5. Found guilty of manhandling any peer, colleague, senior, company vendor, business associate or anyone who is associated with the organization

25.6. Consistent low performance can also lead to the termination with prior notice to the employee for the desired improvement in the deliverables.

25.7. Employer is not liable to pay any notice period to employee who is found guilty of clause 24 - Points 1, 2, 3, 4 & 5 as mentioned above.

25.8. If employee is terminated with the reason of low aggregate performance employer may pay notice to employee at the sole discretion of management.

25.9. Upon termination of employment, you will immediately hand over to the Company all correspondence, and you will also return all company assets, which may be in your possession.

25.10. The notice pay as applicable will be paid in the full & final settlement post completion of handover & no dues clearance. Any financial losses caused to the company due to your act of negligence, forgery, insubordination & in discipline will be recovered from your full & final settlement.

**26. Auto-Termination:** In case of your absence from the work/duty without any intimation for a period of 9 consecutive days or practicing absenteeism, appropriate disciplinary action would be taken against you, which includes termination of your employment if you cannot justify with reasonable clarity, the grounds of absence and failure to intimate the company thereof. In the event of your resignation from services and exit from the organization by giving prescribed notice period as per clause 23.

**27. Retirement:** The retirement age is **60 years**. You will retire from the employment of the Company at the end of the month in which you attain 60 years of age. The company shall intimate you regarding your retirement date before **6 months** and conduct your final settlement as per full & final settlement of the company.

**28. Handover Process:** At the time of separation, it is the mandatory responsibility of employee to clear his/her dues, return company's belonging and proper handover to the assigned representative of organization.

28.1. Employee must not copy, transfer or delete any data or information kept on the company's laptop or Desktop.

28.2. Employee must not carry any company's Asset/ Information / Data etc. with him/her during separation.

28.3. Employee must not destroy any paper / file / diary / hard drive / pen drive mobile etc.

28.4. Employee must submit the filled and signed no dues form in HR on the last working day.

28.5. Handing over of responsibility to be confirmed by the departmental head / Reporting Manager in the No Dues form or via email.

28.5.1 During the period of 2 years immediately succeeding the termination of your employment for whatever reason, you will not directly or indirectly and without company's prior written consent:

28.6. Any excess payment made to the employee such as excess leave, loans advance etc. the same shall be adjusted / deducted while settling his full and final payment.

28.7. HR will issue the relieving letter only after the successful completion of notice period, submission of No Dues and hand over of responsibilities.

**29. Leaves:** The guidelines on leaves in detail, availability of leaves and eligibility criteria for leaves are provided in and will be governed by the policy of the company. You will be entitled to earned leave, casual leave and other statutory leaves (maternity & paternity leave) as applicable to your category of employees and entitled to leave and holidays as per the company policies. Before proceeding for leaves, you are required to apply well in advance to the appropriate authority and seek prior sanction of leave. For extension of leave, an application will have to be made in advance so that it may reach before the expiry of leave originally granted. Mere submission of application will not mean that leave is granted. Earned leave availed on account of sickness should be supported through a medical certificate issued by a medical practitioner.

Employee Signature

**30. Rules & Regulations:** You shall abide by the rules and regulations of the company, if any, which are in force at present and/ or amended from time to time or alternatively as per model standing order. You shall work within the framework of the company's structure/ policies and direction as may be laid down / given to you by the management.

**31. Jurisdiction:** Your employment will be governed by the Laws of India any disputes arise will be subject to the exclusive jurisdiction at the court of Ahmedabad, Gujarat.

We warmly welcome you to the organization and sincerely trust that we will have a long and mutually beneficial association.

Yours sincerely,

**For Gitakshmi Enterprises Private Limited**

Employee Signature\_\_\_\_\_

**Authorized Signatory**

### **Acknowledgment of Appointment Letter**

**I, Mr. Raval, : Raval I, Resident .**

1. I have read & understood the content & obligation of the appointment Letter.
2. I had sufficient time to review the content of the appointment letter.
3. I have been given an opportunity to obtain advice concerning to my duties & liabilities pertaining the to the employment with the company.

I undertake this responsibility to adhere all the terms and conditions as stated in the appointment letter.

**Signature:\_\_\_\_\_Place: \_\_\_\_\_Date:\_\_\_\_\_**

### ***Note - For Employee***

*Please confirm your acceptance on the Terms and Conditions of Appointment Letter by duly signing on each page along with Acknowledgement and returning one duplicate copy of the Appointment Letter within two days from the receipt of this letter in the Respective HR & Admin Department.*

Employee Signature\_\_\_\_\_Page **6 of 8**



### Annexure "A"

| CTC Structure                                      |            |        |
|----------------------------------------------------|------------|--------|
| Name                                               | Raval,     |        |
| Designation                                        | MERN Stack |        |
| Site / Location                                    |            |        |
| Date Of Joining                                    |            |        |
| Emp. Code                                          |            |        |
| PROPOSED SALARY                                    |            |        |
| Salary Head                                        | Monthly    | Yearly |
| Minimum Wage                                       |            |        |
| Basic                                              |            |        |
| HRA @ 50%                                          |            |        |
| Conveyance Allowance @ 15%                         |            |        |
| Compensatory Allowance                             |            |        |
| Bonus                                              | -          | -      |
| Gross Salary                                       |            |        |
| PF ( Employer )                                    |            |        |
| ESIC Employer )                                    |            |        |
| CTC - (A)                                          |            |        |
| Provident fund (Employee)                          |            |        |
| ESIC (Employee)                                    |            |        |
| Income Tax/Prof. Tax                               |            |        |
| Take Home Salary                                   |            |        |
|                                                    |            |        |
| B - Retirement Benefits                            |            |        |
| Gratuity                                           |            |        |
|                                                    |            |        |
| Total - (B)                                        |            |        |
| C - Others Benefits                                |            |        |
| P.A.Policy.Premium                                 |            |        |
| Firm's contribution to Mediclaim Medical insurance | -          | -      |
| Total - (C)                                        |            |        |
| TOTAL CTC (A+B+C)                                  |            |        |

### NONCOMPETE AND NON-DISCLOSURE AGREEMENT

I, **Raval**, : **Raval**, Resident of Address . In consideration of M/s. GITAKSHMI ENTERPRISE PRIVATE LIMITED, a company incorporated under the Companies Act, 1956, and having its office at Office No. 304-306 & 701, Kaivanna, Ambawadi, Off C.G. Road, Ahmedabad, Gujarat - 380006. (Hereinafter referred to as "GITAKSHMI" having employed me and given me opportunity to provide services to GITAKSHMI and /or the GITAKSHMI 's Client(s) and for other good and valuable consideration, the receipt and adequacy of which, I do hereby acknowledge and further agree as follows.

All information obtained by me such as GITAKSHMI's pricing, Client contact, work availability and information provided by Client which is considered confidential information / material by GITAKSHMI and also any information

Page 7 of 8

**Gitakshmi Enterprises Private Limited**

Regd Office: Office No. 701, 7th floor Kaivanna, Ambawadi, Off C.G. Road, Ahmedabad, and Gujarat 380006.

Email: info@gitakshmi.com Web: [www.gitakshmienterprise.com](http://www.gitakshmienterprise.com) CIN: U47912GJ2024PTC155727

obtained in exploring potential work opportunities, which is not publicly disclosed by GITAKSHMI, shall be considered strictly confidential and proprietary to GITAKSHMI or to GITAKSHMI's Client(s) who shall supply or provide such information.

By way of example, GITAKSHMI's pricing, Client contact, work availability and Client provided information is considered GITAKSHMI's confidential information / material. I shall not at any time during or after termination of this Agreement, utilize the information in a manner detrimental to GITAKSHMI's Client(s), or disclose such information or the nature of such information herein, except as may be expressly authorized in writing by GITAKSHMI. GITAKSHMI shall have all rights and remedies to enforce this provision including, but not limited to, an injunction to enjoin and restrain any violation of this agreement.

Under this Agreement, all the computer program (including source code, object code and listings) or other work of authorship developed by the Company, all intermediate and partial versions thereof, as well as, all program materials, flow charts, client contact information, wages, billing, contract terms, personnel information, other company agreements and information intrinsic to the operation of the company's business, notes, reports, documentation, outlines, customer lists and the like created in connection with the clients' project, including any formulae, processes, algorithms, ideas and other information concerning the company, their clients, employees, sub- contractors, associates, successors and assigns, all legal aspects and all personnel also other information not generally known to the public, whether or not protected by copyright, and developed or generated by the Employee in the course of employment is "Trade Secrets" and is developed and owned by the Company and the Employee does not have any right what so ever on any development/ document/ information/ configuration etc.. No employee/ contract or associate employee will have any right so ever on any development/ document/ information/ configuration, all this will have owned by GITAKSHMI and its client.

I agree that I will not provide (or advise others of the opportunity to provide), directly or indirectly, for ourselves or for another party, any service to any Client to which I have been introduced to, or about which I have received. Information through GITAKSHMI under this Agreement. This restriction will be applicable during the time of employment services and for a period of one (1) year after termination of employment with any or all Clients that I may be affiliated with through GITAKSHMI. This restriction also includes one (1) year from the first date such information is provided, regardless of whether or not an employment agreement results from introduction to Client(s) by GITAKSHMI.

I also agree not to recruit, solicit or hire, for our own account or purposes, or the account of others, any of GITAKSHMI's Clients, employees, consultants or other personnel while I am performing any and all services for GITAKSHMI and/ or GITAKSHMI's Clients at any time during our contract with GITAKSHMI/GITAKSHMI's Client(s), and for a for the purposes of this Agreement the words "I", "me", and "our" refer to the undersigned.

Name: Raval

Designation: MERN Stack

Name of the organization/person: GITAKSHMI ENTERPRISE PRIVATE LIMITED

Corporate Address: Office No. 304-306 & 701, Kaivanna Complex, Off C.G. Road, Panchavati Society, Ambawadi, Ahmedabad, Gujarat - 380006

Signature: \_\_\_\_\_

Date: \_\_\_\_\_